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A lesbian couple's wedding ceremony in Vancouver, Canada. The rights of LGBT (lesbian, gay, bisexual, and transgender) people are contested around the world. Canada was the first country in the western hemisphere to legalize same-sex marriage.

Regarding the gender of partners, same gender (or same-sex, or gay marriages) are increasingly recognized as legal around the world, from those first to do so (Denmark, Norway, and Holland) to many other countries that now do. The concept of marriage, and its legality, is a lively area of debate in and beyond anthropology (Feinberg 2012).

Regarding the "legitimacy of offspring," many cultures do not define the legitimacy of children on the basis of whether they were born within a marriage. Women in the Caribbean region, for example, typically do not marry until later in life. Before that, a woman has sequential male partners with whom she bears children. None of her children is considered more or less "legitimate" than any other.

Other definitions of marriage focus on rights over the spouse's sexuality. But not all forms of marriage involve sexual relations; for example, the practice of woman–woman marriage exists among the Nuer of South Sudan (see Map 15.6, page 000) and some other African groups (Evans-Pritchard 1951:108–109). In this type of marriage, a woman with economic means gives gifts to obtain a "wife," goes through the marriage rituals with her, and brings her into the residential compound just as a man would who married a woman. This wife contributes her productive labor to the household. The two women do not have a sexual relationship. Instead, the woman who marries into the household will have sexual relations with a man. Her children, though, will belong to the compound into which she married.

The many practices that come under the heading of marriage make it impossible to find a definition that will fit all cases. One might accept the following as a working definition of **marriage**: a more or less stable union, usually between two people, who may be, but are not necessarily, coresidential, sexually involved with each other, and procreative with each other.

SELECTING A SPOUSE All cultures have preferences about whom one should and should not marry or with whom one should and should not have sexual intercourse. Sometimes these preferences are informal and implicit, and other times they are formal and explicit. They include both rules of exclusion (specifying whom one should not marry) and rules of inclusion (specifying who is a preferred marriage partner).

An **incest taboo**, or rule prohibiting marriage or sexual intercourse between certain kinship relations, is one of the most basic and universal rules of exclusion. In his writings of the 1940s, Claude Lévi-Strauss proposed a reason for the universality of incest taboos by saying that, in non-state societies, incest avoidance motivated men to exchange women between families. In his view, this exchange is the foundation for all social networks and social solidarity beyond the immediate group. Such networks promote trade between areas with different resources and peace through ties established by bride exchange. So, for him, the incest taboo has important social and economic functions: It impels people to create social organization beyond the family.

Contemporary genetic research suggests an alternate theory for universal incest taboos. It says that larger breeding pools reduce the frequency of genetically transmitted conditions. Like the theory of Lévi-Strauss, the genetic theory is functional. Each theory attributes the universal existence of incest taboos to their adaptive contribution to human survival and success, though in two different ways.

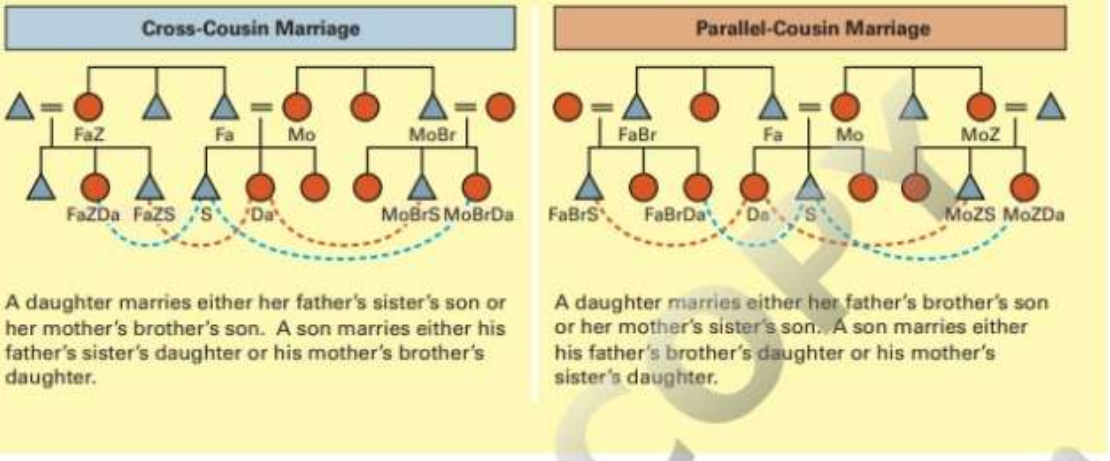
marriage a union, usually between two people who are likely to be, but are not necessarily, coresident, sexually involved with each other, and procreative.

incest taboo a strongly held prohibition against marrying or having sex with particular kin.

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Figure 8.4 Two Types of Cousin Marriage



Anthropological data support both theories, but ethnographic data provide some puzzles to consider.

The most basic and universal form of incest taboo is against marriage or sexual intercourse between fathers and their children and between mothers and their children. Although most cultures forbid brother–sister marriage, a few exceptions exist. The most well-known example of brother–sister marriage as an accepted practice comes from Egypt at the time of the Roman Empire (Barnard and Good 1984:92). Brother–sister marriage was the norm among royalty, and it was common among the general population, with between 15 and 20 percent of marriages between full brothers and sisters.

Further variations in close-relation marriage arise with regard to cousins. Incest taboos do not universally rule out marriage with cousins. In fact, some kinship systems promote cousin marriage, as discussed next.

Many preference rules exist cross-culturally concerning whom one should marry. Rules of **endogamy**, or marriage within a particular group, stipulate that the spouse must be from a defined social category. In kin endogamy, certain relatives are preferred, often cousins. Two major forms of cousin marriage exist. One is marriage between **parallel cousins**, either between children of one's father and one's father's brother or between children of one's mother and one's mother's sister—the term parallel indicates that the linking siblings are of the same gender (see Figure 8.4). Parallel-cousin marriage is favored by many Muslim groups in the Middle East and northern Africa. The second form of cousin marriage is between **cross-cousins**, either between children of one's father and one's father's sister or between children of one's mother and one's mother's brother—the term cross indicates the different genders of the linking siblings. Hindus of southern India favor cross-cousin marriage. Although cousin marriage is preferred, it nonetheless is a minority of all marriages in the region. A survey of several thousand couples in the city of Chennai (formerly called Madras) (Map 8.4) in southern India showed that three-fourths of all marriages involved unrelated people, whereas one-fourth were between first cross-cousins or between uncle and niece, which is considered to be the same relationship as that of cross-cousins (Ramesh, Srikumari, and Sukumar 1989).

Readers who are unfamiliar with cousin marriage may find it objectionable on the basis of the potential genetic disabilities from close inbreeding. A study of thousands of such marriages in southern India, however, revealed only a small difference in rates of congenital problems compared to cultures in which cousin marriage is not practiced (Sundar Rao 1983). Marriage networks are diffuse, extending over a wide area and offering many options for "cousins." This situation contrasts to the much more closed situation of a single village or town. In cases where cousin marriage exists among a small and circumscribed population, then the possibility of negative genetic effects is high.

Endogamy may also be based on location. Village endogamy is preferred in the eastern Mediterranean among both Christians and Muslims. It is also the preferred pattern among Muslims throughout India and among Hindus of southern India. Hindus of northern India, in contrast, forbid village endogamy and consider it a form of incest. Instead, they practice village **exogamy**, or marriage

endogamy marriage within a particular group or locality.

parallel cousin offspring of either one's father's brother or one's mother's sister.

cross-cousin offspring of either one's father's sister or one's mother's brother.

exogamy marriage outside a particular group or locality.